

Court No. - 67

Case :- CRIMINAL MISC. WRIT PETITION No. - 5170 of 2024

Petitioner :- Ramesh Chandra Kasera And Another

Respondent :- State Of Up And 2 Others

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Ajay Singh,G.A.,Narendra Kumar Tiwari

Hon'ble Rahul Chaturvedi,J.

Hon'ble Gajendra Kumar,J.

Heard Sri Arun Mishra, learned counsel for the petitioner, Sri Ajay Singh, learned counsel for the respondent as well as Sri Rakesh Kumar holding brief of Sri Narendra Kumar Tiwari, learned counsel appearing for the Department.

The prayer sought by the petitioners are as follows :-

"(i) Issue appropriate writ holding Section 135(2)(a) and (b) of the Electricity Act, 2003 empowering authorized officers of licensee to hold search and seizure, inconsistent to the provisions of Section 47, 51, 94 and 100 Cr.P.C. empowers only person acting under a warrant or any police officer to hold search and seizure :-

(ii) Issue appropriate writ holding Section 154(3) of Electricity Act, 2003 prescribing summary trial for the offence of Section 135 to 139 of Electricity Act, 2003 having punishment of three years, inconsistent with the provision of Chapter XXI Section 262(2) of Cr.P.C. which limits the sentence of imprisonment for a term not exceeding three months for the offence to be tried summarily.

(iii) Issue appropriate writ holding Clause 8.2 of the U.P. Electricity Supply Code, 2005 ultra vires as it hammers the overriding effect of Cr.P.C. "

Before coming to the prayer, the factual aspect of the issue is that respondent no.3, Executive Engineer Electricity Urban Distribution Division, Ram Bagh, Allahabad alleged to have searched the premises of the petitioner under section 135 of the Electricity Act, 2003, r/o 312, Rani Mandi, Allahabad on 12.12.2020 and provision notice was sent to the petitioner on 13.12.2020. Copy of the assessment of the notice is annexed as Annexure-1 to the petition. The petitioner filed an objection on 27.01.2021 setting forthwith the facts of the case and requesting respondent no.3 to provide opportunity of personal hearing to him.

Instead of providing personal audience, the petitioner received summon from the Special Court, E.C. Act, Allahabad to appear before him in pre-trial dated 27.02.2024 in case crime no.4772 of 2020 in case no.1 of 2024 under section 135 of the Electricity Act, 2003.

Undoubtedly, offence under section 135 of the Electricity Act are compoundable in nature under section 152 of the Electricity Act but instead of compounding offence, it seems that the petitioners are more interested in contesting the case on flimsy grounds. The prayer sought is that Section 135(2)(a)(b) of the Electricity Act, 2003 empowering the authorized officer licensee to hold search and seizure in consistence with the provision of Section 47, 51, 94 and 100 of the Cr.P.C.

We have examined this argument advanced by learned counsel for the petitioner and we find that there is no inconsistency or anomaly in between these. Being the Electricity Act, 2003, it is the special Act in which part of the procedure laid down under the Cr.P.C. are borrowed to conduct search and seizure and by no stretch of imagination, it could be said that there are inconsistency or at the cross-road. Further argument is that Section 154(3) of the Electricity Act prescribes the summary trial for the offence under section 135 to 139 of the Electricity Act which provides the punishment of three years is inconsistent with the provision of Chapter XI of Section 262 (2) Cr.P.C. which limits the sentence for imprisonment in term of not exceeding three months of the offence pre-tried summarily.

On this ground, we have keenly perused the respective provisions and we are of the considered opinion that this petition is lack of judicial understanding and that is why he is creating unwarranted confusion in the matter.

In addition to this, it is also argued that Clause 8.2 of the U.P. Electricity Code, 2005 is ultra vires as it hampered the overriding effect of Cr.P.C. This argument is per se absurd to its core.

In the sum and substance, the arguments advanced by learned counsel for the petitioners reflects the lack of judicial understanding and deserves no interference in the present petition. The petition is hereby rejected with the direction to the court concerned to gear up the matter and conclude the same within the time limit of four months.

Accordingly, the present petition stands rejected.

Let copy of this order may be place before the court concerned by 12.04.2024

Order Date :- 4.4.2024

Sumit S